63-357 Inspection of Case Records

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63-357.1 Family Resource Center (FRC) Procedures

Authorized persons requesting review, as well as those authorized to actually complete the inspection will be subject to the Family Resource Center (FRC) review procedures listed below. This includes those persons requesting review in preparation for a State Hearing. If a more extensive review is requested, the applicant/recipient should be referred to the Appeals section to schedule an appointment.

FRC review procedures are as follows:

	Review Procedure Requirement
1.	The complete case record, **except for privileged communications as noted in 63-357.2 below and information not provided solely by or authorized by the client or his/her authorized representative**, will be made available for inspection. The privileged communication and information not provided solely by or authorized by the applicant/recipient or his/her authorized representative, **will be removed from the case record before any review by the applicant/recipient or his/her authorized representative.** **Note: The case narratives must be provided for review; however, privileged communication/information must first be removed from the case record prior to the inspection. (See 63-357.2 below for a summary of privileged communication/information.)**
2.	Case inspection is permitted only during normal work hours.
3.	FRC's will make a private room available for case record review where reviewers may discuss the case contents. **No case will be made available unless the worker or a suitable substitute is present in the room during the**

	entire period of examination.
4.	The reviewers **will not** be permitted to remove, alter, photocopy or photograph anything in the case record. The reviewers are permitted to make notes. On request, eligibility staff may photocopy specific items in the case record for the reviewer. Photocopies in response to general requests (the whole case file, all SAR 7's etc.) should not be provided. Program Guides or other regulations may be made available, on request, during the case review. Entire chapters are not to be copied but photocopies of applicable regulations may be made.
5.	The worker will record in the case comments all requests for inspection of case records.

Note: Requests to review a closed case in Record Library should be directed to the Public Assistance Information (PAI) Unit.

63-357.2 Privileged Communication/ Information which cannot be Released to the Client

There are communications/information contained in case records which are not subject to review by the applicant/recipient or his/her representative. Additionally, there are communications that are not subject to review by the applicant/recipient's authorized representative without **specific consent** of the applicant/recipient as referenced in Sections 63-353 and 63-354.

Some of the privileged communications are briefly summarized below:

PHYSICIAN – MEDICAL PERSONNEL/PATIENT

Confidential information from a physician **cannot** be disclosed to the authorized representative without specific written consent of the client/patient. Some physicians may request a report not be released to the patient. In such cases, the physician's consent to release the report must be obtained.

PAFD REPORTS

All reports, summaries and other confidential communications and information obtained by PAFD in the process of investigating an alleged fraud will be removed from the case record prior to its inspection by an applicant/recipient or an authorized representative.

IDENTITY OF INFORMER

Staff may not disclose the identity of an informer to the applicant/recipient or his/her authorized representative.

CHILD ABUSE HOTLINE REPORTS

All reports and other confidential communications/information obtained as a result of a Child Abuse Hotline complaint will be removed from the case record prior to its inspection by an applicant/recipient or an authorized representative.

LAWYER/APPLICANT/RECIPIENT

Matters of confidential communication between a lawyer and client cannot be disclosed to an authorized representative without specific written consent of the applicant/recipient.

SPOUSES

Confidential communication between spouses during their marital relationship cannot be disclosed unless both agree to its disclosure, even after the marriage has terminated.